

HOUSE No. 505

The Commonwealth of Massachusetts

PRESENTED BY:

James C. Arena-DeRosa

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act providing state support for municipal private special education costs.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>James C. Arena-DeRosa</i>	<i>8th Middlesex</i>	<i>1/15/2025</i>

HOUSE No. 505

By Representative Arena-DeRosa of Holliston, a petition (accompanied by bill, House, No. 505) of James C. Arena-DeRosa relative to private special education costs. Education.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act providing state support for municipal private special education costs.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 22N of chapter 7 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by adding the following paragraph:-

3 The bureau of purchased services and the unit for special education pricing shall not pass
4 on costs for approved private special education programs pursuant to chapter 71B to local city,
5 town, municipality or school districts where the student is located by more than 2.5 percent of
6 the current rate of tuition over 1 year. The bureau shall request for supplement funding for an
7 increase of 2.5 per cent under Article CXXI of the Massachusetts Constitution.

8 SECTION 2. Section 5 of chapter 71B of the General Laws, as so appearing, is hereby
9 amended by adding the following paragraph:-

10 The bureau of purchased services and the unit for special education pricing pursuant to
11 section 22N of chapter 7 shall submit proposed increases of costs for approved private special
12 education program pursuant to chapter 71B by March 1st of each year to each city, town,

13 municipality or school district to help prepare and adjust school budgeting. Any increases of
14 costs for approved private special education programs submitted after March 1st shall not take
15 effect until July 1st of the following year.